

Grounded in Labour



The era when labour strikes could paralyse India's cities feels long past. No Dutta Samant today wields absolute power over a metropolis. Trade unions still exist, of course, but they sit at the edges of our polity, a spent force in mainstream politics. Employment may not be a guaranteed fundamental right, yet unions were once seen as its protectors—its sword arm. That has changed. The reforms of 1991 are often treated as the turning point. Since then, labour relations have arguably never been better, or worse, depending on where you stand.

Against this backdrop, the Union government has finally codified a set of far-reaching labour reforms. The four Labour Codes promise to reshape the compact between employers and employees. Even the gig economy, now a major source of livelihood for hundreds of thousands, has been brought within the framework.

On paper, this looks like progress. In practice, the devil will be in the details. Implementation is still months away, and state-level rulemaking will determine whether this monumental reset delivers for all stakeholders.

There is a lot to absorb. Even the definition of wages has been reworked. A Cyril Amarchand Mangaldas study notes that a larger workforce is now accorded protection under various provisions, and the definition of employer has expanded to cover those they engage indirectly as contract labour. Other shifts are more contentious. Earlier, notice was required for strikes and lock-outs only in public utility services. The new Industrial Relations Code widens that net—workers in any industrial establishment cannot strike without notice under specified timelines.

As *Surabhi* explains in this issue's cover story, the question is simple: will the new codes truly ease compliance and nudge investors to build and scale up in India? After years of navigating the old regime, industry is watching to see how the Centre and states actually roll out the rules. Unions, too, are preparing to push back—as many as 10 trade bodies are planning a nationwide strike in February.

And anyone who believes industrial relations are in the pink of health needs only to look at the recent IndiGo crisis. A scheduling and crew-rostering glitch brought India's flying public to a standstill. The airline appears not to have hired enough pilots in time to meet new flight duty norms. Famous for its cost discipline, IndiGo is accused of allowing the situation to fester to pressure the government into a rollback. Regulators, meanwhile, seemed asleep at the controls.

As *Richa Sharma* writes, the crisis has stabilised for now. But the larger questions remain. A dominant, profitable airline, overseen by an illustrious board, simply folded for days. Not due to a lack of planes, but because it simply did not hire enough new labour, even as simmering discontent grew among existing staff.

And that, ultimately, is the point. India can rewrite its labour laws and promise an easier rulebook. But until enforcement is uniform, and accountability real, the codes will remain what Indian reform becomes too often: theoretically sound, but operationally shaky. **BT**

Siddharth

siddharth.zarabi@businesstoday.in
@sazarabi

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